

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Homar Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to amend charter school tuition reimbursement provisions.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>2/19/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/21/2025</i>

HOUSE No.

By Representative Gómez of Easthampton, a petition (subject to Joint Rule 12) of Homar Gómez and Lindsay N. Sabadosa relative to charter school reimbursements. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to amend charter school tuition reimbursement provisions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1: Title This Act shall be known as "The Fair Charter School Reimbursement
2 Act"

3 Section 2: Purpose The purpose of this Act is to ensure equitable charter school tuition
4 reimbursement for municipalities based on their financial capacity. This Act seeks to amend
5 Section 89 of Chapter 71 of the Massachusetts General Laws by adding provisions that adjust
6 reimbursement levels based on a municipality's combined effort yield relative to its foundation
7 budget.

8 Section 3: Amendment to MGL Chapter 71, Section 89

9 Amend Section (gg) of MGL Chapter 71, Section 89, by adding the following provisions
10 at the end of Section (gg) but before Section (hh):

11 1. (I) If the municipality's combined effort yield is less than or equal to 100 per cent
12 of the municipality's foundation budget and reimbursement in accordance with this section is

less than 100 per cent of a municipality's total charter tuition assessments for the current fiscal year, then a municipality shall be reimbursed 100 per cent of the total charter sending tuition assessments or whichever amount is greater.

2. (II) If the municipality's combined effort yield is less than or equal to 150 per cent of the municipality's foundation budget but is greater than 100 per cent of the municipality's foundation budget, and reimbursement in accordance with this section is less than 50 per cent of a municipality's total charter tuition assessments for the current fiscal year, then a municipality shall be reimbursed 50 per cent of the total charter sending tuition assessments or whichever amount is greater.

Section 3: Effective Date This Act shall take effect at the beginning of the next fiscal year following its passage.

Legislative Declaration The Commonwealth acknowledges the financial burden that charter school tuition assessments place on municipalities. This amendment ensures that municipalities with lower fiscal capacity receive adequate reimbursement, thereby promoting fairness in education funding.